such as India as it also acts as a protector of the federation resolving the conflicts of jurisdiction between the Centre and the States.

Group Activity



What Do You Think?

After carefully reading three case studies read the qualification of a judge given in this chapter.

What kind of a person makes a good judge? Discuss with your team members. Write a paragraph not more than 250 words on what your team would look for in a person before appointing him or her as a judge.

Each group consists of 5 members. Display your group work in the classroom Notice Board.

4.1 Evolution of Indian Judiciary

Judicial System in Ancient India

India has been a Sub – Continent of different races, different cultures, different languages and a multitude of political and social systems. In ancient times, as well as in the medieval times, none of the Indian States was segregating judicial functions from the executive. During the Vedic period, the authority of the head of the family (Kulapa or Kulapato) was insulated from royal interferences; Similarly the clannish or tribal bodies like Grama, Gopa, Vishaya, Jana and Gana enjoyed autonomous powers. In the ancient Indian monarchical orders, the king was considered to be the highest judicial authority. As king's will was the law, his word was the highest and absolute verdict in disputes.

However, most of the disputes were settled and disposed of at the local level through caste bodies or local administrative bodies. Extreme cases like treason were tried in the king's court. There was no regular system of jurisprudence or judicial procedures. Most often the accused was to prove his innocence either through evidences and witnesses or through subjection to different kinds of ordeals such as ordeal by fire, ordeal by water and ordeal by poison.

Punishments (penal system) was severe and even barbaric if blood money was in vogue (less was to be replaced with material compensation)- Whipping, flogging, amputation of limbs, impalement, rigorous imprisonment, enslavement, banishment, confiscation of property, beheading, hanging and trampling by elephants were some of the punishments meted out to the culprits. In kingdoms which came under Brahmanical influence, smritis were invoked in trial as well as in awarding punishments.

There were a number of smritis such as Manusmrit, Narada Smriti, and Yagnavakya Smritis : of which Manu Smriti was held as a core Smriti, other smritis had certain variatious. The Smritis generally upheld the graded varna – Jati social order. There was no 'equality before law' concept. Brahmins were mostly insulated from regular procedures and regular punishments. On any account, Brahmins, even if they committed the most heinous crimes, were to be exempted from physical torture, amputation, impalement or capital punishment. On the other hand the depressed castes were subjected to

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